EVEN HAEZER: HILCHOT GITTIN - DAYANUT SHIURIM

Which Name Comes First in the Get?

Even HaEzer, Gittin 129:16-end

Sefer: Shulchan Aruch, Even HaEzer, Hilchot Gittin **Siman:** 129, Seif 16 to the end of the siman
Shiur: A Dayanut shiur by Dayan Daniel Kada, Wednesday 2 February 2022

These notes are based on an automatic transcript of the recording.

Where We Are

The aim was to finish Siman 129 in this shiur. The previous shiur covered Seifim 10-15:

- **Seif 10:** changing the father's or mother's name. You don't have to write them, but if you do, make sure not to change them.
- **Seif 11:** no names at all. *Bepashtut* the get is *batel* and the child a mamzer.
- **Seifim 12-13:** two names, but now in a third place.
- **Seif 14:** two names used at different times, written together.
- **Seif 15:** the first of four scenarios, a shortened or childish form of a name.

Seif 15 leads straight into the next two seifim, so the Rabbi reviewed it. Seifim 15-17 together give **four scenarios** of a person with two **related** names.

"As I told you at the beginning of the siman, only the first three, four, five seifim are *dina de-Gemara*. The rest is conjecture of many of the Rishonim, and therefore it's *talui al haminhag*."

Part 1: The Four Scenarios of Related Names

Scenario 1: a shortened or childish form (Seif 15)

The Shulchan Aruch's examples are forms like Yitzchak and Itzik, Aharon and a short form, Peretz and a short form. It is sufficient to write just the first name, Yitzchak or Aharon, because the short form comes out of the main name. If you want to write both you may, and today we probably would.

Scenario 2: a non-Hebrew name that interprets the Hebrew one (Seif 16)

The Shulchan Aruch: Yehuda is called **Leib** (lion), because of *gur aryeh Yehuda*. Since the second name comes out of the first, write **"Yehuda *de-mitkarei Leib"*, "and so is the custom in these countries." But if the second name is totally unrelated, for example Yehuda and Paul, write*** ha-mechuneh***.

This is a fundamental machloket:

	Basis	Rule
Shulchan Aruch	**Maharik**	Related name: *de-mitkarei*. Unrelated: *ha-mechuneh*
Rema	**Mordechai**	It depends whether the name is ***kodesh*** (Hebrew) or ***la'az*** (vernacular). Two Hebrew names are on an equal footing: *Yehuda de-mitkarei Yisrael*. A la'az name is on a different footing: *Yehuda ha-mechuneh Leib*

When in doubt, *de-mitkarei*. The Beit Shmuel says that if there is any doubt whether a name is *kodesh* or *la'az*, then even for Ashkenazim one writes *de-mitkarei*, because *de-mitkarei* is always more encompassing than *ha-mechuneh*.

The Rabbi asked for an example of a name doubtful between Hebrew and vernacular. A student suggested David or Jacob. The Rabbi thought that according to the principles of this siman, an English David is not a new name at all: it is not a different kind of name, so it falls under last week's scenario. But he could hear the argument for classic biblical names whose English form differs a little, like Zedekiah or Zechariah.

The Beit Shmuel on "ha-mechuneh"

The surname **Lieberman** is actually the Yiddish form of Eliezer. Take a man whose Hebrew name is **Eliezer Ze'ev**, called to the Torah as Eliezer Ze'ev, but commonly called **Lieberman Wolf**.

- **The Beit Shmuel** (on Seif 14) "incredibly" says to write *Eliezer ha-mechuneh Lieberman, Ze'ev ha-mechuneh Wolf*. He holds that *ha-mechuneh* refers only to **the last word** before it. So for a man called to the Torah as Moshe Yehuda but known as Moshe Leib, he writes "Moshe Yehuda *ha-mechuneh* Leib", where *ha-mechuneh* goes only on Yehuda, since Moshe is just Moshe.
- **All the Acharonim** disagree: *ha-mechuneh* refers to the **whole name**. One writes *Eliezer Ze'ev ha-mechuneh Lieberman Wolf*. The **Tiv Gittin** goes so far as to say that a get written the Beit Shmuel's way is *batel*.
- **Lema'aseh:** definitely do like the Tiv Gittin, but perhaps one can rely on the Beit Shmuel if it was already written his way.

If the vernacular name is part of the actual given name, for example he was named **Yehuda Leib** at birth and called to the Torah that way, then there is no *ha-mechuneh* at all. That is simply his name.

Scenario 3: the family name (Seif 17, second part)

Here there is another machloket between the Shulchan Aruch and the Rema, reflecting a machloket of Rishonim.

	Ruling
Shulchan Aruch (Beit Yosef, following the **Maharik**, Rav Yosef Colon)	Write the family name, but since it is not a personal name, write it with ***ha-mechuneh***
Rema (Darkei Moshe, following what he wrote in the **Seder Gittin**)	**Never write a family name**

Why not? Among those who do write it, there is a debate over the formula: *ha-mechuneh*, or another term used specifically for family names. Since there is doubt, don't write any family name at all.

Today, the minhag in all gittin across the world is not to write family names, "despite the fact, if we're realistic, that's probably the best way to identify someone." Instead of all the *de-mitkarei* of David, Dovid and so on, the family name would be clearest. What we rely on is the principle from the **Torat Gittin** learned at the beginning of Siman 128, which "will come up in a few places": today there is a ***ma'aseh beit din*** (the Beth Din's record), which records the person's full name, address and postcode. That serves as the identification behind the get, and it is sufficient.

The **Pitchei Teshuva** adds that even if a man is always called by his surname and even signs with it (his example is a man called Roizen, rarely called by his first name, who signed "Roizen"), one still does not write the family name.

Scenario 4: an exact translation (Seif 17)

אם השם השני בלשון לעז והכל אחד, כגון חיים ויוואנט, כותבין חיים דמתקרי ויוואנט

Vivant (from which the English **Vivian** comes) means life: an exact translation of **Chaim**. This is different from Yehuda and Leib, where Leib is not literally Yehuda but the idea of Yehuda as a lion. Here the English is an exact translation, and still the Shulchan Aruch writes *de-mitkarei*.

The Rema does not argue here, but relies on what he wrote in the previous seif: for a la'az name, always *ha-mechuneh*, even when it is an exact translation.

The four scenarios together

#	Case	Shulchan Aruch	Rema
1	Short or childish form (Yitzchak, Itzik)	Not needed; may be written	Same
2	Vernacular name connected to the Hebrew (Yehuda, Leib)	*De-mitkarei*; unrelated name, *ha-mechuneh*	Hebrew pair, *de-mitkarei*; Hebrew and la'az, *ha-mechuneh*
3	Family name	Written, with *ha-mechuneh*	Never written (and this is the minhag today)
4	Exact translation (Chaim, Vivant)	*De-mitkarei*	*Ha-mechuneh*

Part 2: Hebrew Name or Common Name? (The Rema in Seif 16)

Back to the Rema in the middle of Seif 16:

> **מי שיש לו שם עברי שעולה בו לקרות בתורה ויש עוד לו שם בלשון לעז, עושין שם העברי עיקר והשני כותבין דמתקרי. והוא הדין באשה עושין שם העברי עיקר**

To set the framework: when someone has two **completely different** names, say Chaim and Paul, that was covered at the beginning of the siman. These seifim are about **similar** names: Yehuda and Leon, Chaim and Vivian. Here the question is which comes first, a Hebrew name or a vernacular one.

- **The Rema**, quoting the **Seder Gittin**: the **Hebrew name is always the ikar**, even if it is less commonly used. For some reason, the Hebrew name has precedence.
- **The Beit Yosef**, in his own view: who cares whether it is Hebrew or vernacular? **Write the name that is used more regularly.** The Rabbi: "I think it's very *mistaber*" (very reasonable).

The Beit Yosef's example is **Simcha and Alegría** (Spanish for happiness). If most people call her Alegría and she is rarely called Simcha:

	Text
Shulchan Aruch (Sephardi gittin)	*Alegría de-mitkariya Simcha*: the more common name first, and *de-mitkarei* since the names are related
Rema	*Simcha ha-mechuneh Alegría*: Hebrew first, and *ha-mechuneh* because the second is a la'az name

"There would be a double machloket there."

Three limits on the Rema

The **Torat Gittin**, brought in the Pitchei Teshuva, limits the Rema's rule:

1. **Only when the la'az name is an interpretation of the Hebrew name.** If it has no connection and is the more common name, even the Rema agrees to write the common la'az name first. If her Hebrew name is Simcha but everyone calls her Catherine, write *Catherine* first. This explains a **teshuva of the Rema** about a woman named Esther whom everyone called **Peslin**, where he wrote Peslin first and then Esther. Since the names are unrelated, the common name comes first; where they are related, the Hebrew name is the ikar. "I see some logic to that." (For the Shulchan Aruch, unrelated names take *ha-mechuneh*; for the Rema, since they are on different levels, presumably also *ha-mechuneh*.)
2. **If he is called to the Torah and signs with the la'az name**, then even the Rema agrees the la'az name comes first. The Rema's rule is only where the Hebrew name is the one used for *aliya la-Torah*.
3. **If the la'az name was added because of illness** (*shem choli*), even the Rema writes it first, since, as we will see, the name of illness generally takes precedence. That is hard to imagine today, since we add Refael or Chaim, but evidently it was once common to add a vernacular name.

A student described a Sephardi case: a man whose Hebrew name was **Asher**, called to the Torah as **Mas'ud** (Arabic, roughly "prosperous," a translation of Asher), whose ketuba said Asher. According to what we learned, even the Rema would write Mas'ud first, since he is called to the Torah by it.

De-itkarei and *de-mitkarei*

The Rema then distinguishes between two Hebrew names both commonly used and where one is less common, writing *de-itkarei* in one case and *de-mitkarei* in the other. "I can't explain this." The **Get Pashut** says the text must be reversed: *mitkarei* is present tense, "is called now." "Everyone throws this out, and no one does this today. We always write *de-mitkarei*."

Names that are not written

- **A shameful nickname** (*kinui shel genai*) is not written in the get. A meshumad who did teshuva: his name from his Christian period is ignored, and *vechol shum* need not even be written for it. (This was touched on in Seifim 5-6.)
- **A kinui never used on its own.** The example given is "Shimon Boich", where he was called Shimon or Shimon Boich but never just Boich. Then just write Shimon.
- But the **Pitchei Teshuva** qualifies: if the kinui has its **own standing as a name**, write it. If he is Yehuda Leib and sometimes called just Leib, then Leib is an accepted name, and one writes *Yehuda Leib de-mitkarei Leib*. Boich, which is not a real name, is not written.

Part 3: A Name Changed Because of Illness (Seif 18)

"This is the last hot seif of the siman."

מי שנשתנה שמו מחמת חולי, אף על פי שקורין אותו תמיד בשם ראשון, מכל מקום שם השינוי עיקר. הגה: אפילו הוא לעז ושם ראשון עברי, וכותבין אותו קודם ואחר כך דמתקרי פלוני שם ראשון

The Rabbi took "the most radical example." A man was **Chaim** his whole life. He became ill and they gave him a new name, say **Vital**. Now the get says ***Vital de-mitkarei Chaim***, even though people still use Chaim far more and only rarely Vital.

- **Almost all the Rishonim** say the new name is always written first, and so rules the Shulchan Aruch, against an opinion quoted in the Darkei Moshe to write the more prevalent name. The reasoning: the name was given at such a tumultuous point in his life that it is the name he is known by, the name people will remember.
- **The Rema adds**, and this is the halacha: even if the new name is **la'az** and the original Hebrew, the new name is written first.

The Noda BiYehuda: here even the Rema agrees to write *de-mitkarei*, not *ha-mechuneh*. Normally for the Rema, Hebrew and la'az on different levels take *ha-mechuneh*. But it would be absurd to write "*ha-mechuneh* Chaim", "nicknamed Chaim", for the name everyone calls him every day of his life.

"As you can see, all of this is just opinions, and it's very difficult. That's why so much machloket and so many different opinions."

The Rabbi's story

About three or four years earlier, the Rabbi was called to the bedside of a man who had been in hospital for about a month. It was a Friday morning, and the doctors had given him two or three hours. Together with another senior Rav and his son, three Rabbanim in all, they decided on the spot to do a **change of name**: his name was **Moshe**, and they added **Chai**. They waited about two hours, it was getting close to Shabbat, and they left. After Shabbat he was still alive, and three or four weeks later he was released. Now he comes to shul every day.

When he was first called up to the Torah after coming home, he was called by his old name. The Rabbi, one of the only people who knew that Chai had been added, realised what had happened. He let it go that time, then made an announcement that he must be called **Moshe Chai**. People still call him Moshe in conversation, but in shul, for an aliya, a *mi sheberach* or a prayer for healing, he is Moshe Chai.

Why tell the story? Because in his get one would write ***Moshe Chai de-mitkarei Moshe***: the name of healing comes first, even though it is used less often.

A new name that was never used

What if the new name was given at the bedside, only one Rav knows about it, and it was never used again?

Opinion	Ruling
Rabbeinu Peretz	**Two gittin**: one with the original name (Chaim), one with the new name (Vital)
Another opinion (brought in the Beit Yosef)	No need to write the new name at all. If it was given once and never used, ignore it

The Beit Yosef, *oseh shalom*: perhaps there is no machloket. If the new name is not used, write only the old name, Chaim. Rabbeinu Peretz requires two gittin where the husband **divorces while still ill**, so we don't yet know how his name will develop. For example, a childless couple, where the wife fears *yibum* if he dies, adds a name and decides to do a get. We cannot write "Vital *de-mitkarei* Chaim", because maybe Vital will never be used again, so two gittin are written, one with each name. But if he divorces three years after his operation and no one has used the name since, everyone agrees: write just Chaim.

How does the Shulchan Aruch rule? He writes a *stam* and a *yesh*, so he is not following the Beit Yosef's reconciliation. *Pashtut*, like a *stam* and *yesh*: *min hadin* the get with the old name suffices; to be machmir, write two gittin like Rabbeinu Peretz. That is how the **Beit Shmuel** reads the Shulchan Aruch. But the Beit Shmuel himself **rules like the Beit Yosef's reconciliation**: if the new name is completely forgotten, do not write it at all; only if the get is given right after the new name was added, while its future is unknown, must two gittin be given *misafek*.

The Rabbi pointed out that this cuts both ways:

Case	Shulchan Aruch (*stam*)	Beit Shmuel
Name changed and get given the **same day**	The old name suffices, since the new name is not yet established (a leniency)	Two gittin
New name **completely forgotten**	A second get is only a chumra	No point in a second get

Called to the Torah by a different name

Even when a name of illness comes first, this is only where he is **not** called to the Torah and does not sign by another name. If he is given an extra name for illness but is called up and signs differently, that name comes first and then the name of illness.

The Rema: ***ve-im oleh le-sefer Torah bishnehem, kotvin ha-sheni ikar ve-ha-rishon de-mitkarei***. Following the Torat Gittin, which most Acharonim and the Pitchei Teshuva follow: he was born **Yitzchak** and his name was changed to **Chaim**, and he is called up as both. Then the new name is the ikar and the old name *de-mitkarei*.

A crucial point: changing versus adding

"I have to say something really, really important, which I should have said at the beginning of the seif." The Rabbi said he only appreciated this after going through it several times:

"This whole seif is talking about where you **changed** his name. Today we don't do that. Today we **add**."

In the seif, the name has been *nishtaneh*: he is no longer called Yitzchak; his name is now Chaim, even if his friends still call him Yitzchak. That is why the new name comes first even though the old one is still commonly used. When a name is **added**, as is done today, "that's a whole different *sugya*": you simply add the name, as in the story of Moshe Chai.

A student mentioned a case from his yeshiva years of a boy whose name was actually **changed**, because it was not a proper name (his father had named him after a moshav), and it was replaced with Avraham. That is a classic case of this seif. Asked whether such a name falls under *kinui shel genai*, the Rabbi said he had always seen *genai* in the context of *avoda zara* and other religions, not just an unusual or unattractive name.

Further details

- **Edim never write *de-mitkarei*.** Witnesses sign with their main name, full stop.
- **Several changes.** If his original name was Tzvi and friends called him Hirsh, then he was renamed Aryeh and friends began calling him Leib, write each name with its kinui, newest first. "Obviously this guy is not getting much better and they keep on changing his name."
- **A change not caused by illness.** For example, a woman called Esther Malka who over a long time became simply Malka. The **Maharik** says this seif only applies to a change because of illness, which is end-of-life and well known. The **Rema** holds it applies even without illness. The **Get Pashut** compromises: it need not be illness, but it must be **a substantial reason**, such as escaping debts or persecution. If people just started calling you another name, this seif does not apply.

Part 4: Two Gittin Out of Doubt (Seif 19)

יש מי שאומר שכשנותנין שני גיטין מספק, לא יתנם בבת אחת אלא בזה אחר זה

Why not give both together? The Rishonim and Acharonim give a number of reasons:

Source	Reason	The Rabbi's comment
Mahari Weil	Perhaps the husband's intention is on the invalid get. He compares it to *mekadesh bemilveh* (betrothing with a loan), where she is not betrothed because his mind is on the loan	Difficult: in that case one is not giving two documents, it is a single act of giving
Darkei Moshe	A concern of ***breira*** (retroactive clarification)	The Acharonim, including Rav Baruch Frankel, ask: *breira* is where something is clarified only afterwards. Here, whichever get has the right name works. What *breira* is there?
A third reason	The Torah says ***sefer***, one document. Two gittin given together are not one *sefer*	
Bach	A concern of ***chatzitza*** (one get interposing between her and the other)	

"As you can see, all of them are interesting explanations." This is only the view of the Mahari Weil; the **Terumat HaDeshen** disagrees, but the Shulchan Aruch follows the Mahari Weil: better to give them one after the other.

The Rema: do the full get ceremony with the first get, then the second. Explain to him why two gittin are being given. If he gave them one after the other, it is absolutely fine.

The Noda BiYehuda's practice

The **Noda BiYehuda**, quoted in several places, says that when he gives two gittin because of these concerns, he **does not tell the husband in advance**. He calls him in, they write the get, he gives it to his wife, and only then does he tell him, "You're not finished yet, you have to do another get." That way none of the concerns (*breira*, his intention, *chatzitza*) can apply.

But that only works with the husband present. With a **shaliach** it cannot be done, because the husband must instruct the agent about everything at once. So, he says, he does not like doing two gittin through a shaliach, and whenever a shaliach is used, everything must be clarified before both gittin.

Part 5: The Remaining Seifim

- **A ger** (as discussed in the context of Seif 9): one may not write "*ben Avraham*" alone, which would be wrong. Write *ben Avraham Avinu* if one wants to allude to his being a ger.
- **Gershom and Gershon** are two completely different names: one is associated with *gerushin* and the other with *gerut*. If it is unknown which is his name, give two gittin.

- **This applies only when the man has no fixed name.** All the doubtful spellings in these seifim are for when we do not know what his name is. For example, **Eliya** (without the *-hu*) appears in five places in Tanach, so it is acceptable. And the Rema's rule applies to the whole seif: if a man has signed his whole life in a particular form and is called to the Torah that way, write it that way. The doubt is only for a man known as "Sam" whose Hebrew form we have to work out.

Matityahu and Matisyahu

"If you look in any Sephardi siddur, you will find in Al HaNissim of Chanukah: *bimei Matityah ben Yochanan Kohen Gadol*." In Ashkenazi siddurim: *bimei Matisyahu*. What is this based on? **"It's based on the seif here, *mamash*."**

- The **Shulchan Aruch** rules **Matityah**: that is the common name.
- The **Darkei Moshe** and the **Beit Shmuel** say that Ashkenazim call him **Matisyahu**, and so write it that way. The Beit Shmuel concludes to give two gittin.
- Sephardim write *Matityah*. "That's why in your siddurim you say Matisyahu, whereas we say Matityah."

"The rest is *pshutim*. Straightforward." Next time, be'ezrat Hashem, Siman 130.

Summary of the Halachot

1. **Related names, four scenarios:** a short form need not be written. A vernacular name connected to the Hebrew takes *de-mitkarei* (Shulchan Aruch, Maharik), or for the Rema, *ha-mechuneh* whenever it is la'az. In doubt whether a name is Hebrew or la'az, write *de-mitkarei*.
2. ***Ha-mechuneh* refers to the whole name** (Acharonim, Tiv Gittin), not just the last word (Beit Shmuel).
3. **Family names are not written** today (Rema), even if he is called and signs by his surname. The Beth Din's records serve as identification.
4. **An exact translation** (Chaim, Vivant): *de-mitkarei* for the Shulchan Aruch, *ha-mechuneh* for the Rema.
5. **Hebrew or common name first?** The Shulchan Aruch writes the more common name first; the Rema puts the Hebrew name first, except where the la'az name is unrelated, is used for aliya and signing, or was added for illness.
6. **Always *de-mitkarei***, never *de-itkarei* (Get Pashut). Shameful names, and kinuim never used alone, are not written.
7. **A name changed for illness** is written first, even if la'az and used less, and with *de-mitkarei* (Noda BiYehuda). If it was never used, write the old name; if the get is given while the new name's future is unknown, two gittin (Beit Shmuel, Beit Yosef).
8. **The seif speaks of changing a name, not adding one**, as is done today.
9. **Edim** sign without *de-mitkarei*.
10. **Two gittin out of doubt** are given one after the other, each with a full ceremony (Mahari Weil, Shulchan Aruch, Rema). The Noda BiYehuda did not tell the husband in advance, but with a shaliach everything must be set out beforehand.

11. **Spelling doubts** need two gittin only when the man has no fixed name. *Matityah* for Sephardim, *Matisyahu* for Ashkenazim.

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